

SOLVED PRACTICE WORKBOOK

Fundamental Rights -Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

Fundamental Rights	
REFRESHED TEACHING NAVIGATION - BASIC SCORE TEST	
01 PART III AS AN ARCHITECTURE: RIGHTS, LIMITS, REMEDIES AND SPECIAL CONTROLS Articles 12-35 and 32 are in Part III. But they are not separately	02 BENEFICIARIES, VERTICAL AND HORIZONTAL REACH, POSITIVE AND NEGATIVE DUTIES Positive duty: state government has to ensure provision of free private
03 QUALIFIED RIGHTS, REASONABLE RESTRICTIONS AND PROPORTIONALITY Legality: Is the restriction authorized by valid law rather than	04 RIGHT TO PROPERTY TRANSITION AND THE NON-DEROGABLE EMERGENCY CORE Calling property merely a "legal right" is incomplete.
05 ARTICLE 12 - THE STATE AND THE INSTRUMENTALITY INQUIRY Article 126 on which is now state body for the public-law element of	06 ARTICLE 13 - LAW, JUDICIAL REVIEW AND THE VOIDNESS DOCTRINES Article 13(2) the state shall make law taking away or diminishing
07 ARTICLE 14 - TWIN EQUALITY, CLASSIFICATION AND ANTI-ARBITRARINESS Intelligible differentia for included group must be distinguishable	08 ARTICLES 15 AND 16 - NON-DISCRIMINATION AND PROTECTIVE DISCRIMINATION Article 15(4) followed State of Madras v
09 RESERVATION DOCTRINE: CREAMY LAYER, CEILING, PROMOTION, EFFICIENCY, EWS AND SC Efficiency is not a valid ground by the reserved category	10 ARTICLES 17 AND 18 - ANTI-UNTOUCHABILITY AND ANTI-TITLE GUARANTEES Article 17 is a fundamental right. It does not merely restrain government
11 ARTICLE 19 - SIX FREEDOMS AND EXACT RESTRICTION GROUNDS "Offences" administrative convenience or vague hurt sentiment	12 SPEECH, PRESS, RIGHT TO KNOW AND THE FIRST AMENDMENT SETTLEMENT Freedom of the press is derived from Article 19(1)(a)
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17 PRIVACY, PROPORTIONALITY, DNA TESTING AND DATA PROTECTION A nine-judge bench held unanimously that privacy is a fundamental	18 ARTICLE 21A - EDUCATION AS A FUNDAMENTAL RIGHT Recent Article 45 toward early childhood care and education below six
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Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Fundamental Rights - Solved Practice Workbook

BASIC MCQS / REMEDIATION

Forty core diagnostic MCQs

Answer placement follows strict A -> B -> C -> D rotation., repeated ten times.

Q1. With reference to the architecture of Part III, consider the following statements:

1. Article 12 identifies bodies bound as the State for Part III purposes.
2. Article 13 makes every inconsistent law wholly non-existent for all purposes.
3. Article 32 is itself a Fundamental Right.
4. Articles 31A-31C create defined protections rather than a general immunity from judicial review.

Which of the statements given above are correct?

- A. 1, 3 and 4 only
- B. 1, 2, 3 and 4
- C. 1 and 2 only
- D. 2, 3 and 4 only

Answer: A.

Explanation: Statement 2 is overbroad: Article 13 uses "to the extent of" inconsistency, supporting severability and, for pre-Constitution law, eclipse. Article 32 is both a right and remedy. Saving clauses operate within their text and remain subject to basic-structure controls where applicable.

Q2. Which one of the following correctly distinguishes beneficiary and horizontal application?

- A. Article 17 is citizen-only because caste is linked to citizenship.
- B. Article 15 is citizen-specific, while Article 15(2) can directly prohibit specified private exclusion.
- C. Every right available to all persons necessarily applies directly against private actors.
- D. Article 19 protects every person but only against the State.

Answer: B.

Explanation: Beneficiary and respondent are separate axes. Article 15 protects citizens, yet clause (2) reaches specified private denial of public-facing facilities. Article 17 is absolute and horizontal. Article 19 is citizen-only.

Q3. A society is almost entirely financed by government, performs a function transferred from a department, and is subject to pervasive administrative control. Which is the most appropriate constitutional approach?

- A. It cannot be State because it is registered as a society.
- B. It is automatically Parliament under Article 12.
- C. Its functional, financial and administrative relationship may make it an instrumentality under Article 12.
- D. Only a statutory corporation can be an "other authority."

Answer: C.

Explanation: *Ajay Hasia* rejects form over substance. Registration as a society does not prevent Article 12 status. The inquiry is cumulative and functional; no claim that it becomes Parliament is involved.

Q4. Which statement about Article 13 is correct?

- A. Every invalid part necessarily destroys the entire Act.
- B. Constitutional amendments are ordinary laws and can be invalidated solely under Article 13(2).
- C. Custom is outside "law" because it is not enacted.

- D. A custom having the force of law is included, while constitutional amendments are controlled through Article 368 and basic structure.

Answer: D.

Explanation: Article 13(3)(c) expressly includes custom/usage with force of law. Article 13(4) and *Kesavananda Bharati* place constitutional-amendment review on the basic-structure route. Severability prevents automatic destruction of the entire Act.

Q5. A pre-Constitution transport law conflicts with a newly enforceable Fundamental Right but is not repealed. Later, the constitutional bar is validly removed. Which doctrine most directly explains possible revival?

- A. Eclipse
- B. Pith and substance
- C. Colourable legislation
- D. Territorial nexus

Answer: A.

Explanation: Under *Bhikaji Narain Dhakras*, a conflicting pre-Constitution law can remain dormant or eclipsed and revive if the shadow is removed. The other doctrines concern legislative competence.

Q6. Which sequence most accurately describes the amendment-Fundamental Rights relationship?

- A. Golaknath created basic structure; Kesavananda abolished amendment review.
- B. Golaknath restricted amendment of FRs prospectively; the 24th Amendment responded; Kesavananda allowed amendment subject to basic structure.
- C. Minerva Mills held that every DPSP automatically overrides every FR.
- D. The 24th Amendment deleted Article 13.

Answer: B.

Explanation: *Golaknath* used prospective overruling and treated amendment power restrictively. The 24th Amendment affirmed Article 368 power and inserted Article 13(4). *Kesavananda* established the basic-structure limit; *Minerva Mills* defended limited amendment and Part III-IV harmony.

Q7. A law creates two classes using an intelligible criterion, but the criterion has no relation to the law's stated objective. Under Article 14, the classification

- A. is valid because only intelligibility matters.
- B. is valid if passed unanimously.
- C. fails the rational-nexus limb.
- D. can be tested only under Article 21.

Answer: C.

Explanation: Reasonable classification requires both intelligible differentia and rational nexus to the objective. Legislative support does not cure constitutional irrationality.

Q8. Which one best captures the relationship between classification and arbitrariness under Article 14?

- A. Any classification is arbitrary.
- B. Anti-arbitrariness abolished all classification analysis.
- C. Classification applies only to executive action and arbitrariness only to statutes.
- D. Classification tests differentiation; anti-arbitrariness also controls capricious State power beyond a neat class comparison.

Answer: D.

Explanation: *E.P. Royappa*, *Maneka Gandhi* and later cases broaden Article 14 without discarding reasonable-classification analysis. Both tools can be relevant.

Q9. Which special provision is constitutionally authorised by Article 15(3)?

- A. A measure specifically advancing women and children
- B. Preventive detention without statutory authority
- C. A title conferred for social service
- D. A residence requirement for State employment made by a State executive order

Answer: A.

Explanation: Article 15(3) expressly saves special provisions for women and children. Article 16(3) residence conditions require parliamentary law; titles and detention are unrelated.

Q10. Which statement concerning Article 16(4) is most accurate?

- A. It abolishes the Article 335 efficiency consideration.
- B. It enables the State to reserve appointments/posts for a backward class inadequately represented in State services.
- C. It creates an enforceable individual right to reservation in every service.
- D. It applies to private employment generally.

Answer: B.

Explanation: Article 16(4) is enabling and representation-linked. It does not compel reservation everywhere, does not generally regulate private employment and must operate with the wider constitutional scheme.

Q11. Consider the following pairs:

1. Article 16(4A) - promotion reservation for SCs/STs
2. Article 16(4B) - separate treatment of backlog reserved vacancies
3. Article 335 proviso - relaxation in qualifying marks/standards for specified promotion reservation

How many pairs are correctly matched?

- A. Only two
- B. None
- C. All three
- D. Only one

Answer: C.

Explanation: All three are correctly matched. The provisions must still be read with *Nagaraj*, *Jarnail Singh* and data/efficiency doctrine.

Q12. After *State of Punjab v. Davinder Singh* (2024), which proposition is correct?

- A. States may alter the Presidential Scheduled Castes list.
- B. One sub-class may receive the entire reservation without review.
- C. Every State must create a sub-quota.
- D. Evidence-based sub-classification within Scheduled Castes is permissible, without changing the Article 341 list.

Answer: D.

Explanation: The judgment permits, but does not mandate, sub-classification. Article 341 list-making remains constitutionally distinct, and exclusionary or unsupported design remains reviewable.

Q13. Which combination is correct?

- A. Article 17 directly reaches private untouchability; national awards are not Article 18 titles if not used as prefixes/suffixes.
- B. Article 17 permits caste disability if customary; Article 18 applies only to citizens.
- C. Article 17 covers only government untouchability; national awards are always prohibited.
- D. Article 17 belongs to exploitation; Article 18 abolishes academic degrees.

Answer: A.

Explanation: Article 17 abolishes untouchability in any form and is horizontally enforceable. *Balaji Raghavan* upheld national awards while forbidding title-like use. Academic and military distinctions are expressly permitted.

Q14. Which Article 19 restriction pairing is correct?

- A. Speech - protection of Scheduled Tribes under Article 19(5)
- B. Association - sovereignty and integrity, public order and morality under Article 19(4)
- C. Profession - contempt of court under Article 19(6)
- D. Movement - friendly relations with foreign States under Article 19(2)

Answer: B.

Explanation: Restriction grounds are clause-specific. ST protection belongs to movement/residence; friendly relations and contempt belong to speech; profession uses general-public interest, qualifications and State monopoly.

Q15. With reference to the First Amendment's speech impact, consider the following:

1. It added public order.
2. It added friendly relations with foreign States.
3. It inserted "reasonable" before restrictions.
4. It added sovereignty and integrity of India.

Which are correct?

- A. 3 and 4 only
- B. 1 and 2 only
- C. 1, 2 and 3 only
- D. 1, 2, 3 and 4

Answer: C.

Explanation: The first three came through the First Amendment, 1951. Sovereignty and integrity was added by the Sixteenth Amendment, 1963.

Q16. The 2024 Electoral Bonds judgment is best understood as holding that

- A. political funding lies wholly outside Article 19(1)(a).
- B. only the Scheme's administrative circular, not enabling provisions, was invalid.
- C. donor privacy always defeats voter information.
- D. funding non-disclosure violated voter information, and unlimited corporate contribution architecture was manifestly arbitrary.

Answer: D.

Explanation: The judgment connected political-funding information to informed voting and invalidated the Scheme/enabling secrecy architecture; it also found deletion of corporate limits manifestly arbitrary.

Q17. Which statement accurately compares IPC section 124A and BNS section 152?

- A. Section 152 uses different ingredients focused on secession, armed rebellion, subversion, separatist activity and sovereignty/unity/integrity; "simple renaming" is inaccurate.
- B. BNS section 152 criminalises every criticism of government.
- C. Their wording and punishment are identical.
- D. Kedar Nath struck down section 124A, so no lineage exists.

Answer: A.

Explanation: The successor provision changes the protected object and ingredients and expressly covers electronic communication/financial means. *Kedar Nath* upheld the old law only through reading down.

Q18. Which is a correct statement of Shreya Singhal?

- A. It created a standalone Fundamental Right to internet access.
- B. It struck down section 66A, upheld section 69A with safeguards and read down section 79.

- C. It held all offensive speech punishable.
- D. It upheld section 66A but struck down section 69A.

Answer: B.

Explanation: Vagueness, overbreadth and chilling effect invalidated 66A. Structured blocking under 69A survived, while intermediary knowledge under 79 was narrowed.

Q19. Anuradha Bhasin most directly supports which proposition?

- A. Secret orders are valid if based on public order.
- B. The Court declared internet access an independent Fundamental Right.
- C. Speech and trade through the internet are protected; orders require publication, review and proportionality, and indefinite suspension is impermissible.
- D. All internet shutdowns are per se unconstitutional.

Answer: C.

Explanation: The Court protected constitutional freedoms exercised through the medium and imposed procedural/proportionality controls. It did not create the broad standalone right or invalidate every shutdown automatically.

Q20. Which statement about criminal defamation is correct?

- A. Defamation is not mentioned in Article 19(2).
- B. Reputation has no Article 21 dimension.
- C. *Subramanian Swamy* invalidated criminal defamation.
- D. *Subramanian Swamy* upheld criminal defamation; the present offence is carried by BNS section 356.

Answer: D.

Explanation: Defamation is an express Article 19(2) ground, and the Court recognised reputation within Article 21. A critical answer may question proportionality without misstating the holding.

Q21. Which Article 20 statement is correct?

- A. Article 20(1) bars retrospective creation/enhancement of criminal liability but permits a beneficial retrospective change.
- B. Article 20 can be included in an Article 359 suspension order.
- C. Article 20(3) applies only to citizens.
- D. Article 20(2) bars every departmental proceeding after a criminal case.

Answer: A.

Explanation: Article 20 protects all persons and is non-derogable under Article 359. Double jeopardy requires constitutional conditions; beneficial criminal retrospectivity is not the evil targeted by clause (1).

Q22. Which of the following is most likely protected by Article 20(3)?

- A. Routine measurement of height
- B. Compelled testimonial disclosure by an accused that communicates personal knowledge against oneself
- C. Compulsory fingerprinting
- D. Collection of a lawfully authorised physical specimen in every circumstance

Answer: B.

Explanation: The core is compelled testimonial communication by an accused. Physical evidence is not automatically testimonial, though collection methods still face Article 21/statutory safeguards.

Q23. Which sequence best represents Article 21's doctrinal expansion?

- A. Golaknath -> Minerva Mills -> Indra Sawhney
- B. Puttaswamy -> Gopalan -> Maneka
- C. Gopalan's siloed approach -> Cooper's effect analysis -> Maneka's fair, just and reasonable procedure

- D. Maneka -> Gopalan -> Cooper

Answer: C.

Explanation: The first sequence traces the transformation of liberty doctrine. The last concerns amendment/reservation rather than the Article 21 procedural arc.

Q24. A court considers compulsory prenatal DNA testing solely because one party makes a bare allegation. Which is the strongest constitutional objection?

- A. Privacy is absolute, so DNA testing can never be ordered.
- B. Article 21 does not protect bodily integrity.
- C. Paternity can never be litigated.
- D. Testing requires a strong lawful need, necessity, child-centred proportionality and attention to BSA section 116, not a roving inquiry.

Answer: D.

Explanation: Privacy can yield to proportionate lawful need, but bare allegations do not satisfy that threshold. The legitimacy presumption and the child's dignity are material.

Q25. Which statement about Article 21A is correct?

- A. It guarantees free and compulsory education for ages six to fourteen and is implemented principally through the RTE Act, 2009.
- B. It was inserted by the Forty-fourth Amendment.
- C. It guarantees university education to every person.
- D. It applies only to citizens over fourteen.

Answer: A.

Explanation: The Eighty-sixth Amendment inserted the age-bounded right and related changes to Article 45 and Article 51A(k).

Q26. Which is correct regarding preventive detention under the current constitutional text?

- A. Article 22 prohibits it completely.
- B. Three months remains the no-Advisory-Board constitutional period because the 44th Amendment's two-month substitution was not commenced.
- C. Clauses 22(1)-(2) apply identically to preventive detention.
- D. Grounds never need communication.

Answer: B.

Explanation: Preventive detention is constitutionally permitted but separately safeguarded. Communication/representation duties apply subject to the public-interest withholding clause.

Q27. Consider the following:

1. Article 23 applies against private forced labour.
2. Economic compulsion and payment below the legal minimum can enter forced-labour analysis.
3. Article 24 bars children below fourteen from factories, mines and hazardous employment.

How many are correct?

- A. None
- B. Only one
- C. All three
- D. Only two

Answer: C.

Explanation: All are correct. *PUDR* supplied the economic-compulsion insight; Article 24's constitutional text is hazard/factory/mine focused.

Q28. Which statement correctly distinguishes Articles 25 and 26?

- A. Article 26 protects only individuals, not denominations.
- B. Article 25 has no reform clause.
- C. Both are subject to other Fundamental Rights in identical words.
- D. Article 25 protects all persons and is subject to other Part III provisions; Article 26 protects denominations subject to public order, morality and health.

Answer: D.

Explanation: The textual limits differ. Article 25(2) expressly permits secular regulation and social reform; Article 26 separates religious affairs from property administration.

Q29. Which is the most accurate statement of the Essential Religious Practices doctrine?

- A. *Shirur Mutt* distinguishes religious affairs from secular activity and examines essentiality by reference to religious doctrines, while the approach is criticised for judicial theology.
- B. ERP originated in the Sabarimala case.
- C. ERP eliminates Article 25(2) reform power.
- D. Any practice asserted by a believer is automatically essential.

Answer: A.

Explanation: *Shirur Mutt* is the foundational authority. Essentiality is not established by assertion alone, and even religious claims face textual limits.

Q30. Which statement about Articles 29 and 30 is correct?

- A. Article 29(1) is available only to numerical minorities.
- B. Article 29 can protect any distinct section of citizens; Article 30 protects religious and linguistic minority educational institutions.
- C. Article 30 creates a right to maladminister.
- D. Article 29(2) applies only to unaided private institutions.

Answer: B.

Explanation: Article 29's text says any section of citizens. Article 30 autonomy coexists with regulations for standards, and Article 29(2) addresses State-maintained/aided admissions.

Q31. A tribunal is about to hear a matter that the statute plainly places outside its jurisdiction. Which writ is most directly preventive?

- A. Quo warranto
- B. Habeas corpus
- C. Prohibition
- D. Certiorari only after every appeal

Answer: C.

Explanation: Prohibition stops a lower court/tribunal from proceeding beyond jurisdiction. Certiorari generally quashes an order already made, though practical boundaries can overlap.

Q32. Which proposition about Articles 32 and 226 is correct?

- A. Article 32 and 226 are territorially and substantively identical.
- B. Article 32 enforces all legal rights; Article 226 only Fundamental Rights.
- C. Article 226 cannot reach a private body performing public duty.
- D. Article 32 is confined to Fundamental Rights, while Article 226 also reaches other legal rights and public duties.

Answer: D.

Explanation: High Court writ jurisdiction is wider in subject matter. Article 32 is itself a Fundamental Right but requires an FR injury.

Q33. Which statement about Article 31B is correct?

- A. Post-24 April 1973 Ninth Schedule insertions may be reviewed for damage to basic structure under *I.R. Coelho*.
- B. Every Ninth Schedule law is eternally immune.
- C. Only pre-Constitution laws can enter the Ninth Schedule.
- D. Article 31B is identical to Article 31C.

Answer: A.

Explanation: *I.R. Coelho* prevents Ninth Schedule placement from becoming a device to destroy basic-structure rights. Articles 31B and 31C use distinct mechanisms.

Q34. After Property Owners Association (2024), which proposition is correct?

- A. Article 31C was completely deleted by *Minerva Mills*.
- B. Original Article 31C survives for Article 39(b)/(c), and private resources require a context-specific material-resource inquiry.
- C. Article 31C protects laws implementing any DPSP.
- D. Every private home is automatically a material resource.

Answer: B.

Explanation: The judgment rejects both the no-private-resource extreme and the all-private-resource extreme. Surviving Article 31C is tied to 39(b)/(d).

Q35. Which combination is correctly matched?

1. Article 33 - Parliament may restrict rights of specified disciplined forces.
 2. Article 34 - parliamentary indemnity/validation connected with martial law.
 3. Article 35 - exclusive parliamentary competence over specified Part III matters.
- A. 2 and 3 only
 - B. 1 only
 - C. 1, 2 and 3
 - D. 1 and 2 only

Answer: C.

Explanation: All are correct. State legislatures cannot exercise Article 33's special power, and martial law remains distinct from National Emergency.

Q36. Which statement accurately distinguishes Articles 358 and 359?

- A. Article 359 deletes the specified rights permanently.
- B. Article 358 applies to armed-rebellion Emergency and Article 359 can suspend Articles 20-21.
- C. Both automatically suspend all Fundamental Rights.
- D. Article 358 automatically concerns Article 19 in war/external-aggression Emergency; Article 359 is Presidential-order based and cannot include Articles 20-21.

Answer: D.

Explanation: The mechanisms, triggers and effects differ. Article 359 suspends court enforcement for specified rights during the order; it does not amend the constitutional text.

Q37. A candidate writes, "Article 27 prevents government from collecting any fee connected with a pilgrimage or religious institution." The correction is:

- A. Article 27 bars compelled taxation specifically appropriated to promote/maintain a particular religion; a regulatory or service fee is analytically different.
- B. Article 27 abolishes all general taxation.
- C. Article 27 applies only to citizens.
- D. Article 27 concerns religious instruction.

Answer: A.

Explanation: Tax versus fee and specific appropriation are the close-option controls. Religious instruction belongs to Article 28.

Q38. A student writes, "Article 29 is only for minorities and Article 30 prevents all regulation." The best correction is:

- A. Both Articles apply only to the majority.
- B. Article 29(1) protects any distinct section of citizens; Article 30 minority autonomy remains subject to valid excellence/fairness regulation and carries no right to maladminister.
- C. Article 30 protects cultural festivals only.
- D. Article 29(2) permits religion-only denial of admission.

Answer: B.

Explanation: The two provisions have different claimants and objects. Institutional autonomy is real but not regulatory immunity.

Q39. A candidate writes, "A Ninth Schedule law cannot be reviewed by any court." The correction is:

- A. Only Parliament may review it politically.
- B. Article 31B was repealed.
- C. Post-24 April 1973 insertions are open to *I.R. Coelho* basic-structure review.
- D. Every Ninth Schedule law is automatically void.

Answer: C.

Explanation: The Ninth Schedule still has protective force, but it cannot become a tunnel around basic structure.

Q40. A student states, "Article 359 suspends the Fundamental Right itself, including Articles 20 and 21." The correct position is:

- A. Article 359 applies only to Article 19.
- B. Article 359 operates without a Presidential order.
- C. Article 359 permanently deletes the selected rights.
- D. It suspends the right to move courts for enforcement of specified rights during the order; Articles 20 and 21 cannot be included.

Answer: D.

Explanation: Enforcement suspension, textual extinction and Article 358 operation must be kept separate.

Eight remedial MCQs

This separate eight-question remedial set rotates A -> B -> C -> D twice.

R1. A candidate writes, "All Fundamental Rights are available only to citizens." The best correction is:

- A. Articles 14, 20, 21, 22, 23, 24 and 25 protect persons; Articles 15, 16, 19 and 29 are textually citizen-specific, while Article 30 says "all minorities."
- B. Citizenship is irrelevant throughout Part III.
- C. Only Article 21 protects non-citizens.
- D. Every Article protects companies in exactly the same manner.

Answer: A.

Explanation: The Constitution uses different beneficiary language. The remedy is textual reading, not a single memorised list detached from Article 30's wording and juristic-person limits.

R2. A student says, "A private organisation can never face a Fundamental Rights remedy." The correct response is:

- A. Private actors are always Article 12 State.

- B. Articles 15(2), 17, 23 and 24 have direct private reach; habeas corpus and Article 226 public-duty jurisdiction add remedial routes.
- C. Only criminal courts can examine private rights violations.
- D. Article 32 applies to every private contract.

Answer: B.

Explanation: Horizontal reach is provision-specific. A private body is not automatically State, but explicit rights and public-duty remedies prevent the absolute claim.

R3. A candidate writes, "The 50 per cent reservation ceiling is an exceptionless mathematical rule." The best correction is:

- A. The ceiling applies only to EWS.
- B. Every State may cross it without reasons.
- C. *Indra Sawhney* states an ordinary 50 per cent rule with narrow extraordinary-situation space; later constitutional amendments and *Janhit Abhiyan* require precise treatment.
- D. There is no ceiling doctrine at all.

Answer: C.

Explanation: Both absolutes are wrong. The ordinary ceiling remains a major doctrine, but EWS and exceptional-space jurisprudence make the word "never" unsafe.

R4. A student writes, "Davinder Singh requires every State to create a Scheduled Caste sub-quota." The correction is:

- A. The case abolished SC reservation.
- B. The case transferred Article 341 list power to States.
- C. The case fixed one nationwide percentage.
- D. It permits evidence-based sub-classification without mandating it or altering the Presidential List.

Answer: D.

Explanation: Permission, compulsion and list alteration are three different propositions. Only the first is the controlling holding.

R5. A candidate writes, "Anuradha Bhasin declared internet access a Fundamental Right." The best correction is:

- A. It protected speech and trade conducted through the internet and imposed publication, review, duration and proportionality controls; it did not make the broad standalone declaration.
- B. It concerned only Article 14.
- C. It upheld indefinite shutdowns.
- D. It removed the State's telecom-suspension power entirely.

Answer: A.

Explanation: The medium and the underlying freedom must be kept distinct. The case's procedural holdings are as important as its Article 19 analysis.

R6. A student writes, "BNS section 152 is just IPC section 124A with a new number." The correct response is:

- A. The provisions are unrelated to speech.
- B. Section 152 has differently framed ingredients centred on secession, armed rebellion, subversion, separatist activity and sovereignty/unity/integrity, including electronic/financial means.
- C. Kedar Nath automatically invalidated it.
- D. Section 152 punishes only violence already completed.

Answer: B.

Explanation: "Simple renaming" suppresses material textual differences. Constitutional review must address the successor provision on its own language while using settled speech principles.

R7. A candidate states, "Article 20(3) prevents collection of every bodily sample." The precise correction is:

- A. The clause applies only in civil suits.
- B. Bodily samples are always admissible regardless of procedure.
- C. The clause targets compelled testimonial communication; physical evidence is analytically distinct but still subject to Article 21 and statutory safeguards.
- D. Article 20(3) never applies to an accused.

Answer: C.

Explanation: *Kathi Kalu Oghad* supplies the testimonial/physical distinction. The correction avoids both overbreadth and a rights-free collection process.

R8. A student says, "The 44th Amendment reduced preventive detention without Advisory Board approval to two months." The correct position is:

- A. It transferred the power to courts.
- B. It increased the period to six months.
- C. It abolished preventive detention.
- D. The two-month substitution was not brought into force; the operative constitutional period remains three months.

Answer: D.

Explanation: The amendment text and its commencement are distinct. UPSC repeatedly tests this unenforced clause.

PYQS AND ANSWER PRACTICE

Twenty-one verified routed PYQs with independent solutions

Mains PYQ 1. UPSC 2019 GS-II Q5 - What can France learn from the Indian Constitution's approach to secularism? (10 marks, 150 words)

Model answer. Thesis: France can learn from India that secularism in a deeply plural society may require principled engagement with religion rather than only a strict public-private wall. **Constitutional design:** Articles 25-26 protect individual conscience and denominational autonomy, while Articles 27-28 restrain religious taxation and instruction. Yet Article 25(2) allows regulation of secular activity and social reform; Article 17 abolishes untouchability. **Analysis:** This creates three lessons for French laïcité. First, equal citizenship need not erase public religious identity. Second, accommodation - such as denomination-sensitive autonomy - can coexist with public order, health, morality and equality. Third, the State may intervene asymmetrically where reform is needed, while maintaining equal concern for all faiths. *S.R. Bommai* treats secularism as a basic feature, and *Shirur Mutt* distinguishes protected religious affairs from regulable secular administration. **Qualification:** India's model also risks selective intervention and judicial theology through the ERP test; France cannot transplant it without its own constitutional history. **Conclusion:** The transferable lesson is not State religiosity, but context-sensitive neutrality: protect conscience, regulate harm and preserve equal citizenship.

Why this earns marks: It answers "what can learn," uses Articles 17 and 25-28 plus *Bommai* and *Shirur Mutt*, compares institutional logics, states a limitation and gives a graded conclusion.

How to improve this answer: In the final 30 seconds, add a two-column France/India contrast and name Article 25(2) as the reform lever; this prevents the answer from becoming a generic defence of Indian secularism.

Mains PYQ 2. UPSC 2021 GS-II Q13 - Analyze the distinguishing features of the notion of Right to Equality in the Constitutions of the USA and India. (15 marks, 250 words)

Model answer. Thesis: Both Constitutions reject arbitrary hierarchy, but India constitutionalises a broader, group-conscious equality code while the US model centres on the Fourteenth Amendment's Equal Protection Clause.

Text and structure: Article 14 combines British **equality before law** with American **equal protection of laws**. India then adds Articles 15-16 on prohibited grounds and public opportunity, Article 17's abolition of untouchability, and Article 18's abolition of titles. The US Constitution has no direct equivalent of this five-Article code.

Substantive equality: India expressly authorises special provisions for women/children, SEBCs, SCs/STs and EWS under Articles 15(3)-(6), and service reservation under Article 16(4)-(6). In the US, affirmative action developed judicially/statutorily under a text that does not expressly authorise group reservations; judicial review uses tiered scrutiny.

Judicial tests: Indian courts use intelligible differentia plus rational nexus, and since *E.P. Royappa* and *Maneka Gandhi*, anti-arbitrariness. *Indra Sawhney* adds creamy-layer and ordinary ceiling discipline; *Janhit Abhiyan* upheld EWS by majority. US doctrine differentiates strict, intermediate and rational-basis scrutiny.

Enforcement and social context: Article 32 itself is a Fundamental Right; Article 17 directly reaches private caste practice. US equal-protection duties generally require State action, though civil-rights statutes regulate private discrimination.

Qualification: Neither system is purely formal or purely group-blind; both have contested affirmative-action histories.

Conclusion: India's distinctive feature is an explicit anti-hierarchy and protective-discrimination Constitution, whereas US equality grows from a general clause through judicial tiers.

Why this earns marks: It compares text, beneficiaries, affirmative action, judicial tests, private reach and remedies rather than merely listing provisions; it uses named doctrine and avoids caricaturing either system.

How to improve this answer: Add one concrete US authority or contemporary affirmative-action reference and compress the Indian reservation detail into a comparison table so every paragraph remains explicitly comparative.

Mains PYQ 3. UPSC 2022 GS-II Q2 - "Right of movement and residence throughout the territory of India are freely available to the Indian citizens, but these rights are not absolute." Comment. (10 marks, 150 words)

Model answer. Thesis: Articles 19(1)(d) and 19(1)(e) make internal mobility and settlement core incidents of common citizenship, but Article 19(5) expressly subjects both to reasonable restrictions.

Scope: The freedoms belong only to citizens and operate against State restriction. They promote national integration, labour mobility and personal choice. Travel abroad, however, is protected under Article 21 after *Maneka Gandhi*, not Article 19(1)(d).

Limits: Article 19(5) permits restrictions in the interests of the general public or for protection of Scheduled Tribes. Constitutionally supportable illustrations include carefully drawn protected-area/tribal-land regimes, public-health quarantine and proportionate public-order restrictions. A restriction still requires valid law, rational connection, necessity and non-arbitrariness under Articles 14 and 19.

Qualification: "General public interest" is not an executive blank cheque; excessive duration, geographic breadth or discriminatory implementation can fail reasonableness.

Conclusion: Movement and residence are presumptive freedoms within a single Union, while Article 19(5) preserves proportionate protection of vulnerable communities and genuine public interests.

Why this earns marks: It names both freedoms and the exact Article 19(5) grounds, distinguishes foreign travel, applies proportionality and ends with a qualified comment.

How to improve this answer: Draw the Article 19(1)(d)/(e) -> Article 19(5) restriction chain and use one tribal-protection illustration; do not spend scarce words on unrelated migration policy.

Mains PYQ 4. UPSC 2023 GS-II Q11 - "The Constitution of India is a living instrument with capabilities of enormous dynamism. It is a constitution made for a progressive society." Illustrate with special reference to the expanding horizons of the right to life and personal liberty. (15 marks, 250 words)

Model answer. Thesis: Article 21 demonstrates constitutional dynamism: an apparently procedural guarantee has become a dignity-based charter without textual replacement.

Doctrinal arc: *A.K. Gopalan* read "procedure established by law" narrowly and treated rights as silos. *R.C. Cooper* shifted attention to the effect of State action. *Maneka Gandhi* then required procedure to be fair, just and reasonable and linked Articles 14, 19 and 21.

Expanding horizons: *Francis Coralie Mullin* made dignity central; *Hussainara Khatoon* recognised speedy trial; *M.H. Hoskot* and Article 39A support free legal aid; *Olga Tellis* protected livelihood through fair procedure; *D.K. Basu* constitutionalised arrest safeguards and compensation; environmental cases linked clean air/water to life. *K.S. Puttaswamy* unanimously protected bodily, decisional and informational privacy. *Navtej Singh Johar* applied dignity, privacy and equality to intimate autonomy.

Progressive constitutionalism: These holdings allow old text to answer new problems - surveillance, data processing, custodial power and reproductive choice. The later insertion of Article 21A shows that interpretation and amendment can complement each other.

Qualification: Expansion must retain administrable standards. *Olga Tellis*, for example, did not create immunity from eviction; recognition of livelihood required fair procedure. Courts should secure a rights floor without converting every policy aspiration into an unlimited entitlement.

Conclusion: Article 21 is "living" because stable text is repeatedly applied through dignity, fairness and proportionality to changing forms of power.

Why this earns marks: It directly illustrates dynamism through a chronological case arc, uses more than six named holdings, explains what each proves and includes an institutional limitation.

How to improve this answer: Use a four-step timeline-*Gopalan*, *Cooper*, *Maneka*, *Puttaswamy*-then attach only one modern application to each step; this improves chronology and stays within 250 words.

Mains PYQ 5. UPSC 2023 GS-II Q12 - Explain the constitutional perspectives of Gender Justice with the help of relevant Constitutional Provisions and case laws. (15 marks, 250 words)

Model answer. Thesis: The Constitution moves gender justice from formal non-discrimination to substantive equality, dignity, autonomy and institutional protection.

Equality: Articles 14 and 16 guarantee equality and public opportunity; Article 15(1) bars discrimination only on sex, while Article 15(3) authorises special provisions for women and children. This permits corrective measures rather than requiring gender blindness.

Freedom and dignity: Articles 19(1)(a)/(g) and 21 protect voice, work, bodily integrity, reproductive choice and decisional autonomy. Article 23 attacks trafficking; Article 39(d), 42 and 51A(e) strengthen equal pay, humane work/maternity relief and rejection of practices derogatory to women's dignity.

Cases: *Vishaka v. State of Rajasthan* converted Articles 14, 19(1)(g) and 21 plus CEDAW into binding workplace-harassment safeguards until legislation. *Anuj Garg* rejected paternalistic exclusion from employment. *Joseph Shine* invalidated adultery law that treated women as marital property. *Secretary, Ministry of Defence v. Babita Puniya* rejected stereotypes in permanent commission. *Suchita Srivastava* linked reproductive choice to liberty; *Shayara Bano* used equality/manifest arbitrariness against instant triple talaq.

Qualification: Protective law can itself become paternalistic; the test is whether it expands agency or fixes women into dependency. Social justice delivery and representation remain uneven despite constitutional doctrine.

Conclusion: Gender justice requires the State to remove direct discrimination, dismantle structural stereotypes and protect equal autonomy in public and private life.

Why this earns marks: It integrates Fundamental Rights, DPSPs/duty and six targeted cases, distinguishes protection from paternalism and preserves the Social Justice implementation cross-link.

How to improve this answer: Organise the body as equality, autonomy, work and protection, and add one implementation gap such as unpaid care or workplace enforcement to satisfy the constitutional "perspectives" demand.

Mains PYQ 6. UPSC 2024 GS-II Q12 - Right to privacy is intrinsic to life and personal liberty and is inherently protected under Article 21 of the Constitution. Explain. In this reference discuss the law relating to D.N.A. testing of child in the womb to establish its paternity. (15 marks, 250 words)

Model answer. Thesis: Privacy is a constitutionally protected sphere of bodily integrity, decisional autonomy and personal information, but a lawful, necessary and proportionate intrusion may be justified for a compelling adjudicatory need.

Constitutional basis: *K.S. Puttaswamy* (2017), a nine-judge decision, held privacy intrinsic to Article 21 and Part III. Interference requires law, legitimate aim, proportionality and safeguards. Pregnancy and DNA sampling engage the woman's bodily integrity, the child's identity/dignity and family privacy; they cannot be treated as ordinary documentary discovery.

Paternity framework: Bharatiya Sakshya Adhiniyam, 2023 section 116 continues the conclusive presumption that a child born during a valid marriage, or within 280 days after dissolution while the mother remains unmarried, is legitimate unless non-access is proved. The presumption protects status and social dignity. Courts have therefore required a strong prima facie foundation or eminent need before DNA testing, considered less intrusive evidence, and prioritised the child's welfare. *Bhabani Prasad Jena* cautioned against routine tests; *Nandlal Wasudeo Badwaik* shows that reliable DNA evidence can become decisive where testing is lawfully justified.

Qualification: Truth-seeking is legitimate, but compulsion must not become a roving inquiry. Refusal may have evidentiary consequences only within fair procedure; it does not automatically erase bodily autonomy or the statutory presumption.

Conclusion: Privacy does not create absolute immunity from DNA evidence; it converts the judicial question into one of legality, necessity, child-centred proportionality and safeguards.

Why this earns marks: It answers both halves, updates the evidence-law section, uses *Puttaswamy* plus paternity authorities, applies the four-part privacy test and gives a precise qualified conclusion.

How to improve this answer: State BSA section 116 and the non-access exception in a separate legal-rule sentence, then apply necessity, less-intrusive alternatives and child welfare to the prenatal facts in that order.

Prelims PYQ 1. UPSC 2018 GS-I Q92 - Privacy

Right to Privacy is protected as an intrinsic part of Right to Life and Personal Liberty. Which of the following in the Constitution of India correctly and appropriately imply the above statement?

- A. Article 14 and the provisions under the Amendment to the Constitution
- B. Article 17 and the Directive Principles of State Policy in Part IV
- C. Article 21 and the freedoms guaranteed in Part III
- D. Article 24 and the provisions under the 44th Amendment to the Constitution

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: C (high confidence).

Explanation: *Puttaswamy* states that privacy is intrinsic to Article 21 and forms part of the freedoms guaranteed by Part III. Article 14 contributes equality review, but option A's amendment formulation is not the holding.

Prelims PYQ 2. UPSC 2019 GS-I Q56 - Right to marry

Which Article of the Constitution of India safeguards one's right to marry the person of one's choice?

- A. Article 19
- B. Article 21
- C. Article 25
- D. Article 29

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: B (high confidence).

Explanation: Adult choice in marriage is protected through life, liberty, dignity and autonomy under Article 21, illustrated by *Lata Singh* and *Shafin Jahan*.

Prelims PYQ 3. UPSC 2019 GS-I Q85 - Liberty

In the context of polity, which one of the following would you accept as the most appropriate definition of liberty?

- A. Protection against the tyranny of political rulers
- B. Absence of restraint
- C. Opportunity to do whatever one likes
- D. Opportunity to develop oneself fully

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: D (high confidence).

Explanation: Constitutional liberty is not mere absence of restraint or licence; it creates the protected sphere in which personality and capacity can develop consistently with others' equal freedom.

Prelims PYQ 4. UPSC 2020 GS-I Q4 - Untouchability

Which one of the following categories of Fundamental Rights incorporates protection against untouchability as a form of discrimination?

- A. Right against Exploitation
- B. Right to Freedom
- C. Right to Constitutional Remedies
- D. Right to Equality

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: D (high confidence).

Explanation: Article 17 lies within Articles 14-18, the Right to Equality. Article 23, not Article 17, addresses begar (forced unpaid labour) and forced labour.

Prelims PYQ 5. UPSC 2021 GS-I Q79 - Privacy Article

'Right to Privacy' is protected under which Article of the Constitution of India?

- A. Article 15
- B. Article 19
- C. Article 21
- D. Article 29

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: C (high confidence).

Explanation: Privacy is intrinsic to Article 21 and Part III. Some privacy applications also engage Article 19, but the requested Article is 21.

Prelims PYQ 6. UPSC 2021 GS-I Q82 - Judicial custody

With reference to India, consider the following statements:

1. Judicial custody means an accused is in the custody of the concerned magistrate and such accused is locked up in police station, not in jail.
2. During judicial custody, the police officer in charge of the case is not allowed to interrogate the suspect without the approval of the court.

Which of the statements given above is/are correct?

- A. 1 only
- B. 2 only
- C. Both 1 and 2
- D. Neither 1 nor 2

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: B (high confidence).

Explanation: Judicial custody ordinarily places the accused in jail under judicial authority, not a police station, so statement 1 is false. Police interrogation during judicial custody requires court permission, making statement 2 correct.

Prelims PYQ 7. UPSC 2021 GS-I Q83 - Parole

With reference to India, consider the following statements:

1. When a prisoner makes out a sufficient case, parole cannot be denied because it becomes a matter of right.
2. State Governments have their own Prisoners Release on Parole Rules.

Which of the statements given above is/are correct?

- A. 1 only
- B. 2 only
- C. Both 1 and 2
- D. Neither 1 nor 2

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: B (high confidence).

Explanation: Parole is ordinarily discretionary and governed by applicable prison/parole rules; it is not an automatic Fundamental Right. Prisons are a State subject and States maintain their own rule frameworks.

Prelims PYQ 8. UPSC 2021 GS-I Q85 - Unguided discretion

A legislation which confers on the executive or administrative authority an unguided and uncontrolled discretionary power in the matter of application of law violates which one of the following Articles?

- A. Article 14
- B. Article 28
- C. Article 32
- D. Article 44

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: A (high confidence).

Explanation: Uncanalised discretion is arbitrary and violates Article 14's equality/non-arbitrariness guarantee.

Prelims PYQ 9. UPSC 2021 GS-I Q92 - Right to Property

What is the position of the Right to Property in India?

- A. Legal right available to citizens only
- B. Legal right available to any person
- C. Fundamental Right available to citizens only
- D. Neither Fundamental Right nor legal right

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: B (high confidence).

Explanation: Article 300A protects "no person," so it is not citizen-only. The technically fuller description is a constitutional right, not a Fundamental Right; among the options, B is correct.

Prelims PYQ 10. UPSC 2021 GS-I Q96 - Bharat Ratna and Padma Awards

Consider the following statements:

1. Bharat Ratna and Padma Awards are titles under Article 18(1).
2. Padma Awards, instituted in 1954, were suspended only once.
3. The number of Bharat Ratna Awards is restricted to a maximum of five in a particular year.

Which of the above statements are not correct?

- A. 1 and 2 only
- B. 2 and 3 only
- C. 1 and 3 only
- D. 1, 2 and 3

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: D (high confidence).

Explanation: National awards are not prohibited titles (*Balaji Raghavan*); Padma awards were suspended in more than one period; and Bharat Ratna regulations do not set a five-per-year maximum (the conventional annual cap is three). All three statements are incorrect.

Prelims PYQ 11. UPSC 2022 GS-I Q18 - Mandamus and Quo Warranto

With reference to the writs issued by the Courts in India, consider the following statements:

1. Mandamus will not lie against a private organisation unless it is entrusted with a public duty.
2. Mandamus will not lie against a Company even though it may be a Government Company.
3. Any public-minded person can be a petitioner to move the Court to obtain the writ of Quo Warranto.

Which of the statements given above are correct?

- A. 1 and 2 only
- B. 2 and 3 only
- C. 1 and 3 only

- D. 1, 2 and 3

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: C (high confidence).

Explanation: Mandamus can reach a private body entrusted with public duty and can reach a government company where public duty exists, so statement 2 is false. Quo warranto uses relaxed standing because it protects the public character of an office.

Prelims PYQ 12. UPSC 2023 GS-I Q31 - Due Process

In essence, what does 'Due Process of Law' mean?

- A. The principle of natural justice
- B. The procedure established by law
- C. Fair application of law
- D. Equality before law

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: A (moderate-to-high confidence).

Explanation: Due process in essence requires fair hearing, impartiality and non-arbitrary procedure - the principles of natural justice. Option C is close but less doctrinally precise; *Maneka Gandhi* reads fairness into Article 21's procedure-established formulation.

Prelims PYQ 13. UPSC 2023 GS-I Q40 - Reservation and efficiency

Consider the following statements:

Statement I: The Supreme Court has held in some judgments that reservation policies made under Article 16(4) would be limited by Article 335 for maintenance of efficiency of administration.

Statement II: Article 335 defines the term 'efficiency of administration'.

Which one of the following is correct?

- A. Both are correct and II correctly explains I
- B. Both are correct but II does not explain I
- C. I is correct but II is incorrect
- D. I is incorrect but II is correct

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: C (high confidence).

Explanation: Article 335 supplies the efficiency consideration but does not define "efficiency of administration." The Court has used it in reservation doctrine, so I is true and II false.

Prelims PYQ 14. UPSC 2024 GS-I Q76 - Right to Privacy

Under which of the following Articles of the Constitution of India has the Supreme Court placed the Right to Privacy?

- A. Article 15
- B. Article 16
- C. Article 19
- D. Article 21

OFFICIAL LOCAL UPSC KEY VERIFIED: D.

Explanation: The local official Set-A key records Q76 as D. *Puttaswamy* placed privacy intrinsically within Article 21 and Part III.

Prelims PYQ 15. UPSC 2026 GS-I Q54 - Article 13 and custom

'X' was addressing a seminar on the meaning of the term 'law' under Article 13. X explained that law included ordinances, orders, rules and regulations, but was not convinced that custom or usage having the force of law was included. 'Y' maintained that such custom or usage was included. Select the correct conclusion:

- A. X is correct, including on non-inclusion of custom
- B. Y's view that law includes custom is incorrect
- C. The views of both X and Y are correct

- D. Only Y's view is correct

PROVISIONAL 2026 KEY - NOT OFFICIAL: D.

Explanation: Article 13(3)(a) expressly includes custom or usage having in India the force of law. X's examples are correct, but X's rejection of custom is wrong; Y alone is correct. The local Set-A provisional key records Q54 as D.

Nine original solved Mains models

OQ1. Fundamental Rights are qualified guarantees, not absolute liberties. Explain the constitutional method by which India limits and protects them. (10 marks, 150 words)

Model answer. Thesis: Part III protects liberty through structured limitation: government must point to constitutional text, valid law and a reasonable means, while courts preserve an enforceable core.

Architecture: Article 14 permits classification only through intelligible differentia and rational nexus and independently bars arbitrariness after *E.P. Royappa*. Article 19 supplies a closed list of restriction grounds - for example, speech can be limited only within Article 19(2), not for mere offensiveness. Articles 25-26 expressly recognise public order, morality and health; Article 25 also yields to other Fundamental Rights and reform under clause (2).

Judicial control: *Maneka Gandhi* requires fair, just and reasonable procedure; *Puttaswamy* adds legality, legitimate aim, proportionality and safeguards. Article 32 guarantees a direct constitutional remedy, while Article 226 is wider.

Qualification: Special clauses such as 31A-31C and Emergency Articles 358-359 narrow review or enforcement only within their own conditions; Articles 20 and 21 remain protected from Article 359.

Conclusion: Indian rights are neither absolute nor gifts of government: their limits are constitutionally enumerated, reasoned and judicially reviewable.

Why this earns marks: It explains a method rather than listing rights, uses Articles 14, 19, 25, 32, 31A-C and 358-359 plus three cases, and closes with the qualified proposition asked.

How to improve this answer: Open with the five-step validity test-beneficiary, respondent, exact ground, proportionality, remedy-and apply it to one short hypothetical instead of listing additional rights.

OQ2. Article 13 makes judicial review practical through a family of doctrines. Discuss severability, eclipse and waiver. (10 marks, 150 words)

Model answer. Thesis: Article 13 invalidates law "to the extent" of inconsistency, allowing courts to protect rights without mechanically erasing an entire legal order.

Severability: If the offending provision can be removed and the remainder remains workable and legislatively intended, only the invalid portion falls. This gives operational meaning to "to the extent of."

Eclipse: Under *Bhikaji Narain Dhakras*, a pre-Constitution law inconsistent with a Fundamental Right lies dormant against that right rather than becoming dead for every purpose; it may revive if the constitutional shadow is removed. The classic rule does not automatically revive a post-Constitution law void under Article 13(2).

No waiver: *Bhikaji Nath* and *Olga Tellis* reject individual surrender or estoppel as a means to validate unconstitutional State action. Fundamental Rights are public limits on power, not merely private benefits.

Qualification: Constitutional amendments follow the Article 368/basic-structure route after Article 13(4) and *Kesavananda Bharati*.

Conclusion: The doctrines combine rights supremacy with legal continuity and calibrated remedies.

Why this earns marks: It defines all three doctrines, distinguishes pre/post-Constitution law, explains rationale and links amendment review without drifting into the whole basic-structure chapter.

How to improve this answer: Add a compact pre-Constitution/post-Constitution comparison for eclipse and state that severability turns on legislative intent and workability; these are the two most likely examiner discriminators.

OQ3. Preventive detention is a constitutional anomaly within the Right to Freedom. Examine. (10 marks, 150 words)

Model answer. Thesis: Article 22 simultaneously constitutionalises detention without trial and attempts to civilise it through minimum procedural safeguards.

Anomaly: Preventive detention responds to anticipated conduct, unlike punitive detention after adjudication. Article 22(3) excludes preventive detainees from the ordinary clauses requiring counsel and magistrate production within 24 hours. This sits uneasily with *Maneka Gandhi*'s fair-procedure principle and Article 21 liberty.

Safeguards: Articles 22(4)-(7) cap detention without Advisory Board approval at the presently operative three months; require communication of grounds as soon as may be; and provide the earliest opportunity to represent, while allowing public-interest withholding. Parliament and States legislate within their distribution-of-power fields.

Implementation concern: vague grounds, delayed communication and repetitive detention orders can make review formal rather than effective.

Qualification: The Forty-fourth Amendment's proposed two-month substitution was never commenced, so asserting two months as current law is wrong.

Conclusion: Preventive detention remains constitutionally valid but legitimate only as an exceptional, narrowly construed and rigorously reviewed power.

Why this earns marks: It answers "anomaly," contrasts punitive/preventive detention, names exact safeguards and the unenforced amendment trap, and offers a constitutionally grounded verdict.

How to improve this answer: Use a punitive-versus-preventive detention table and explicitly separate Article 22(1)-(2) from 22(4)-(7); reserve the final line for the uncommenced two-month trap.

OQ4. India's reservation jurisprudence seeks substantive equality but is controlled by evidence, limits and administrative efficiency. Analyse. (15 marks, 250 words)

Model answer. Thesis: Reservation is a constitutional technique of equal opportunity, not a departure from equality; its legitimacy depends on identifying disadvantage and under-representation without converting enabling power into unreviewable allocation.

Constitutional basis: Articles 15(4)-(6) authorise educational/special provisions for SEBCs, SCs/STs and EWS; Articles 16(4), 16(4A), 16(4B) and 16(6) address appointment, promotion/backlog and EWS. Article 335 adds the efficiency consideration.

Judicial controls: *Indra Sawhney* upheld OBC reservation, required creamy-layer exclusion, set the ordinary 50 per cent ceiling and excluded promotion from Article 16(4). The 77th, 81st, 82nd and 85th Amendments rebuilt promotion/backlog tools. *M. Nagaraj* required data on inadequate representation and attention to efficiency; *Jarnail Singh* removed the need to re-prove SC/ST backwardness but retained inadequacy/efficiency discipline.

New dimensions: *Janhit Abhiyan* upheld the 103rd Amendment's EWS design by majority. *Davinder Singh* (2024) permitted evidence-based SC sub-classification to reach the most disadvantaged, without allowing States to alter Article 341 lists or mandating sub-quotas.

Assessment: Data prevents political assertion from replacing constitutional need; creamy layer guards capture; Article 335 requires capable administration. Yet "efficiency" cannot mean preserving historically exclusionary institutions.

Conclusion: Reservation serves substantive equality when targeted, evidence-based, reviewable and combined with education/training rather than treated as either permanent patronage or an anti-merit exception.

Why this earns marks: It follows claim -> provisions -> amendment/case evidence -> what each controls -> qualification, includes 2024 law and gives a balanced understanding of efficiency.

How to improve this answer: Add a clause map of Articles 15(4)-(6) and 16(4), (4A), (4B), (6), then connect each case to one control-creamy layer, ceiling, data, efficiency or sub-classification.

OQ5. India's freedom of speech is protected through a structured test, not an absolute slogan. Discuss with special reference to digital speech and political information. (15 marks, 250 words)

Model answer. Thesis: Article 19(1)(a) presumptively protects expression, press circulation and democratic information, while Article 19(2) allows only eight enumerated, reasonable and law-based grounds.

Historical settlement: *Romesh Thappar* and *Brij Bhushan* invalidated circulation/pre-censorship restraints under the original text. The First Amendment added public order, friendly relations and incitement, but also inserted "reasonable"; the Sixteenth Amendment later added sovereignty and integrity.

Doctrinal test: *Kedar Nath* saved old IPC section 124A only by confining it to incitement to violence/public disorder. *Shreya Singhal* struck section 66A for vagueness, overbreadth and chilling effect, protected discussion/advocacy short of incitement, upheld section 69A and read down section 79.

Digital process: *Anuradha Bhasin* protected speech/trade through the internet and required published orders, proportionality, periodic review and no indefinite suspension; it did not create a standalone internet right.

Political information: *Association for Democratic Reforms* (2024) invalidated Electoral Bond secrecy because voters need political-funding information under Article 19(1)(a), linking transparency with political equality.

Current criminal law: BNS section 152 is a differently drafted successor focused on secession, rebellion, subversion and sovereignty; calling it a mere renaming obscures the new constitutional inquiry.

Conclusion: Speech protection succeeds when grounds remain closed and State process is precise, published, proportionate and reviewable.

Why this earns marks: It uses the historical sequence, exact doctrinal holdings, digital procedure, electoral transparency and current BNS control, while correcting two common overstatements.

How to improve this answer: Quote the eight Article 19(2) grounds as a closed list in a margin box and explicitly distinguish the old section 124A interim position from the live Section 152 challenge.

OQ6. Article 21 has transformed the Supreme Court into a guarantor of dignity, but its expansion also raises institutional concerns. Critically examine. (15 marks, 250 words)

Model answer. Thesis: Article 21's expansion is the Constitution's strongest dignity achievement, but the Court must distinguish enforceable minimums from policy administration.

Transformation: *Gopalan*'s narrow, siloed procedure yielded to *R.C. Cooper* and *Maneka Gandhi*, which required fair, just and reasonable law and linked Articles 14, 19 and 21. *Francis Coralie* made dignity central. *Hussainara* and *Hoskot* secured speedy trial/legal aid; *D.K. Basu* imposed arrest safeguards and compensation; *Sunil Batra* protected prisoners; *Olga Tellis* recognised livelihood; environmental cases protected clean air/water.

Autonomy: *Puttaswamy* recognised bodily, decisional and informational privacy through legality, legitimate aim, proportionality and safeguards. *Navtej Singh Johar* and reproductive-choice cases applied dignity to intimate autonomy. Article 21A's later insertion shows amendment can crystallise judicially identified needs.

Institutional concern: Expansive declarations may lack budget, statutory detail or monitoring capacity. A right to livelihood, shelter or health can become rhetorically unlimited if detached from a concrete duty, responsible institution and remedy. *Olga Tellis* itself allowed eviction subject to fair procedure, illustrating remedial restraint.

Assessment: Courts are institutionally strongest at stopping coercion, requiring reasons, removing discrimination and enforcing emergency minima; legislatures/executives should design distributive systems above that floor.

Conclusion: Article 21 should remain a dynamic dignity floor, not an unbounded judicial policy code.

Why this earns marks: It presents both achievement and concern, supplies eight named authorities, explains remedial limits and gives an institutional rather than ideological criticism.

How to improve this answer: Prioritise six rights with one named authority each and add a short enforceability test-duty-bearer, minimum core and remedy-before the institutional-restraint conclusion.

OQ7. Religious freedom in India combines protection, regulation and reform. Critically examine the Essential Religious Practices doctrine within this model. (20 marks, 250 words)

Model answer. Thesis: Articles 25-26 create neither a theocratic privilege nor a strict separation wall; they protect conscience and denominational affairs while allowing public-order limits, secular regulation and social reform. ERP is the judiciary's contested device for drawing that boundary.

Constitutional design: Article 25 protects all persons, subject to public order, morality, health, other Fundamental Rights and Article 25(2) regulation/reform. Article 26 protects denominations in religious affairs but permits lawful regulation of property administration. Articles 27-28 restrain religious taxation and instruction.

ERP origin and use: *Shirur Mutt* distinguished religious matters from secular activities and referred essentiality to religious doctrines. The doctrine prevents every associated activity from claiming immunity. *Durgah Committee* introduced a narrower judicial filter; later cases often asked courts to determine theological centrality. In *Sabarimala*

(2018), the majority rejected the exclusion practice through denomination, equality and constitutional-morality reasoning.

Defence: ERP preserves a protected religious core while enabling reform and preventing commercial/administrative practices from escaping law.

Criticism: Secular judges may become theologians; essentiality can freeze religion, privilege texts over lived practice and avoid the more transparent question of harm/proportionality.

Better approach: First classify individual/denominational claims and religious/secular activity; then apply explicit text, competing rights, harm, reform authority and proportionality. Essentiality should not substitute for the Constitution's express limits.

Conclusion: ERP is useful as a threshold but constitutionally legitimate only when disciplined by equality, dignity and institutional humility.

Why this earns marks: It covers all four religion Articles, origin/evolution/application, defence and criticism, and proposes a text-first test rather than a slogan.

How to improve this answer: Add a three-column ERP defence/criticism/replacement-test table and avoid stating the Sabarimala review proceedings as finally settled beyond the 2018 majority holding.

OQ8. "Article 32 is the heart and soul of the Constitution, but Article 226 is the wider remedial jurisdiction." Examine. (20 marks, 250 words)

Model answer. Thesis: Article 32 gives Fundamental Rights guaranteed access to the Supreme Court; Article 226 gives High Courts a wider subject-matter and public-duty reach. They are complementary pillars of judicial review.

Article 32: It is itself a Fundamental Right and authorises writs for enforcement of Part III. Ambedkar's "heart and soul" description reflects direct access, while *L. Chandra Kumar* and basic-structure doctrine protect judicial review from exclusion. The Supreme Court's jurisdiction is original but not exclusive.

Article 226: High Courts may issue writs for Fundamental Rights **and any other purpose**, including ordinary legal rights and public duties. Territorial/cause-of-action proximity and fact-sensitive supervision often make the High Court the effective first constitutional court. A non-State body performing a public duty may be reached even when Article 12 status fails.

Writ logic: Habeas corpus cures unlawful detention, including private detention; mandamus compels public duty; prohibition stops jurisdictional excess; certiorari quashes defective orders; quo warranto protects public office with relaxed standing.

Qualifications: Article 32 is not a general appeal over every illegality; an FR injury is essential. High Court relief is discretionary and may consider alternate remedy, delay or disputed facts, though these rules are not absolute bars in rights cases.

PIL contribution: Relaxed standing enabled bonded-labour and prisoner claims, but institutional detail belongs to the Supreme Court/PIL chapter.

Conclusion: Article 32 constitutionalises the right to a remedy; Article 226 decentralises and broadens public-law justice. Weakening either would impair basic structure.

Why this earns marks: It explains "heart and soul" and "wider" separately, uses the five writs and public-duty reach, states limits and preserves the cross-link boundary.

How to improve this answer: Separate Article 32 entitlement from Article 226 discretion in the opening diagram, and give one fact-pattern for each writ so the answer demonstrates remedial selection rather than memorisation.

OQ9. Part III reconciles rights with social revolution and constitutional emergency, but not without tension. Evaluate with reference to Articles 31A-31C, 33-35 and 358-359. (20 marks, 250 words)

Model answer. Thesis: The Constitution protects individual freedom while preserving defined space for redistribution, disciplined services and emergency action; legitimacy depends on narrow text, judicial review and a non-derogable core.

Social-revolution clauses: Article 31A saves specified reform categories from Article 14/19 attack. Article 31B and the Ninth Schedule protect listed laws, but *I.R. Coelho* subjects post-24 April 1973 insertions to basic-structure review.

Article 31C protects genuine implementation of Article 39(b)/(c). *Property Owners Association* (2024) confirmed its survival while rejecting the claim that every private asset is automatically a material resource.

Institutional discipline: Article 33 lets Parliament restrict rights of armed/public-order/intelligence forces for discipline. Article 34 permits parliamentary indemnity connected with martial law; Article 35 reserves specified Part III legislation to Parliament. These are competence and necessity clauses, not rights-free zones.

Emergency: Article 358 automatically displaces Article 19 constraints only during war/external-aggression Emergency and within post-44th conditions. Article 359 requires a Presidential order suspending court enforcement of specified rights. Articles 20 and 21 cannot be included.

Tensions: Saving clauses can shield coercive redistribution; discipline can suppress dissent; emergency power can normalise exceptional rule. The answers are relation-to-purpose, recital, temporality, proportionality and basic-structure review.

Conclusion: Part III reconciles transformation and necessity not by trusting the State, but by enumerating exceptional powers and keeping their boundaries judicially enforceable.

Why this earns marks: It integrates every requested Article family, uses *I.R. Coelho* and *Property Owners*, distinguishes martial law/Emergency and gives a mechanism-based evaluation.

How to improve this answer: Use three mini-headings-redistribution, disciplined services, Emergency-and end each with its review control; explicitly state that Article 359 suspends enforcement, not the right text itself.